

**JUDGMENT SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT**

Crl. Appeal No.17977 of 2020
(Muhammad Waqas. versus The State, etc.)

Crl. Appeal No.18416-J of 2020
(Mst. Rimsha Bibi versus The State)

JUDGMENT

Date of hearing: 13.03.2025.

Appellants by: Mr. Muhammad Shoaib Bhatti, Advocate (for appellant in Crl. Appeal No.17977 of 2020)
Mian Muhammad Naseem, Advocate (for appellant in Crl. Appeal No.18416-J of 2020).

State by: Ms. Maida Sobia, Deputy Prosecutor General with Safeer S.I.

Complainant by: Nemo.

AALIA NEELUM, CHIEF JUSTICE: - Muhammad Waqas son of Muhammad Irshad, caste Khokhar, resident of Chak No.31, Hanjharwal, Police Station Changa Manga, District Kasur (**appellant in Crl. Appeal No.17977 of 2020**) and Mst. Rimsha Bibi wife of Muhammad Tanvir, caste Khokhar, resident of Chak No.31, Hanjarwall, P.S., Changa Manga Tehsil Chunian, District Kasur (**appellant in Crl. Appeal No.18416-J of 2020**), were involved in case FIR No.19/2018, dated 11.01.2018, registered under Sections 302, 34 PPC, at the Police Station, Changa Manga, District Kasur, and were tried by the learned Additional Sessions Judge, Chunian, District Kasur. The trial court seized with the matter in terms of the judgment dated 03.03.2020 and convicted the appellants under section 302(b) PPC and sentenced them to undergo **imprisonment for life as Tazir** with the direction to pay Rs.4,00,000/- each as compensation to the legal heirs of the deceased, and in case of default in payment thereof, each of

them would further undergo six months S.I in each count. The benefit of section 382-B Cr.P.C. was also extended in favour of the appellants.

2. Feeling aggrieved by the trial court's judgment, Muhammad Waqas, the appellant, has assailed his conviction by filing **Crl. Appeal No. 17977 of 2020.** Whereas, Mst. Rimsha Bibi filed separate jail appeal bearing **Crl. Appeal No.18416-J of 2020.** Both matters arise out of the same judgment. Therefore, they are being disposed of through a single judgment.

3. The prosecution story, as alleged in the F.I.R (Ex. PC) lodged on the written application (Ex.PE) of Malik Naveed (PW-7)-the complainant, is that he (PW-7) was resident of Chak No.31, Hanjarwal, in the area of Changa Manga and labourer by profession; in the house, his father Rehmat Ali and mother Inayat Bibi (the deceased) and his Bhabhi Rimsha Bibi wife of Tanveer Ahmad (the appellant in Crl. Appeal No.18416-J of 2020) were residing; on 11.01.2018 at about 05:00 a.m. Muhammad Ashraf (given up PW being unnecessary), paternal cousin of Malik Naveed (PW-7) complainant, called and informed him (PW-7) that his mother Inayat Bibi, aged 65-70, had fallen in a seriously injured condition and asked him to come home immediately; after receiving information, Malik Naveed (PW-7)-the complainant alongwith his brother Tanveer Ahmad rushed to Changa Manga Hospital, where his mother was lying dead on a stretcher in the emergency ward; there were visible injuries caused by sharp edge weapon on left side of her head, on forehead above right eye, left hand and belly. Muhammad Ashraf (given up PW) and Fiaz Ahmad told that they shifted his mother to Changa Manga hospital, in injured condition, who succumbed to injuries; his mother was done to death by some unknown persons.

4. After the alleged occurrence, Malik Naveed (PW-7)-the complainant, rushed to the police station to report it. He presented the application (Ex. PE) to Naveed-ul-Haq ASI (PW-5), who chalked out FIR (Ex.PC). After the case was registered, Muhammad Amin S.I (PW-12) conducted the investigation, who found the appellants guilty, prepared a report

under Section 173 of Cr.P.C. and sent the same to the court of competent jurisdiction while placing the names of both accused persons in Column No.3 of the challan. On 17.03.2018, the trial court formally charge-sheeted the appellants, to which they pleaded not guilty and claimed trial. In support of its version, the prosecution produced as many as twelve (12) witnesses.

5. After the closure of prosecution evidence, the appellants were examined under Section 342 of Cr.P.C., wherein neither they opted to appear as their own witnesses in terms of Section 340 (2) Cr.P.C. however, Muhammad Waqas (the appellant in Crl. Appeal No.17977 of 2020), tendered Mark-A and Mark-B in his defence. In response to a particular question of why this case was against them and why the PWs deposed against them, the appellant-Muhammad Waqas, made the following deposition: -

“The PWs are close relatives interse. The case is based on decade lasts animosity between the parties. My maternal son-in-law namely Muhammad Asif son of Shahamat Ali, lodged FIR No.225/08 P.S, Changa Manga against Aslam alias Jajj and Fiaz son of Ghulam Rasool, PWs and maternal first cousin of complainant u/s 302 PPC at P.S, Changa Manga. Maternal uncle of Fiaz PW,, lodged FIR No.454/04 against my uncle namely Shahzad son of Abdul Aziz at P.S, Changa Manga u/s 324 PPC, etc. Therefore, these PWs have their grudge and animosity and due to that reason they maneuvered with the complainant facts of this case.”

Whereas Mst. Rimsha Bibi (appellant in Crl. Appeal No.18416-J of 2020), in reply to the question of why this case was against her and why the PWs deposed against her, deposed as below: -

“The instant FIR was lodged against unknown accused and after few days of occurrence complainant nominated me after consultation. Infact Mansab Ali, cousin of complainant, Muhammad Ashraf and Shahamad PWs, committed murder of my grand-father namely

Shah Muhammad, as a result of which he remained in jail and due to this grudge, complainant and PWs falsely entangled me in this case and deposed against me falsely.”

6. After recording evidence and evaluating the evidence available on record in the light of the arguments advanced by both sides, the trial court found the prosecution version proved beyond any shadow of reasonable doubt, which resulted in the appellants’ conviction in the afore-stated terms.

7. The complainant has not put in appearance despite his personal service. As this appeal pertains to the year 2020, so the same is hereby decided after hearing learned counsel for the appellants and learned Deputy Prosecutor General.

8. Arguments advanced by the learned counsel for the appellants and learned Deputy Prosecutor General have been heard and record on the file has been perused.

9. As per the prosecution's case, on 11.01.2018 at 5:00 a.m., Muhammad Ashraf (given up PW being unnecessary), paternal cousin of Malik Naveed (PW-7) complainant, called Malik Naveed (PW-7)-complainant and informed him that his mother Inayat Bibi, aged 65-70, has fallen in a seriously injured condition and asked him to come home immediately. Malik Naveed (PW-7)-the complainant rushed to Changa Manga Hospital after receiving the information that his mother was lying dead on a stretcher in the emergency ward. Upon this, Malik Naveed (PW-7), the complainant, went to the police station and informed the police about the incident through a written application (Ex. PE) at 9:00 a.m. Naveed-ul-Haq ASI (PW-8) chalked FIR (Ex.PC) against the unknown accused. Malik Naveed (PW-7) deposed during cross-examination that:

"It is correct when I was called, my cousin did not involve/name any person as accused. I came to Changa Manga at about 08:30 a.m. It is correct that application Ex.PE is computerized version. The application was computerized at Police Station Changa Manga. The application

Ex.PE was computerized by Moharrar of P.S. Changa Manga and time was 09:00 a.m. -----
----- It is correct that till the registration of the case no one told me about the accused persons.”

Later, based on the information of Muhammad Aslam alias Jaj (PW-8) and Shahamat Ali (given up PW being unnecessary), Malik Naveed (PW-7), the complainant, named Rimshah, and Waqas appellants accused of the murder of his mother Inayat Bibi on the strength of a supplementary statement (Ex. PF). Malik Naveed (PW-7) deposed during cross-examination that:

“I made my supplementary statement at about 10:30 a.m. It is correct that we did not report to the Police that Mst. Rimsha accused was abducted or missing till 10:30 am. Volunteered, she was present in house till 10:30 a.m. Shammat Ali witness is my real uncle. Aslam alias Judge is my real paternal uncle. On asking of Shammat Ali and Aslam witnesses I nominated accused persons at mid of the day.”

The prosecution failed to prove that when Muhammad Aslam alias Jaj (PW-8) and Shahamat Ali (given up PW being unnecessary) informed Malik Naveed (PW-7), the complainant, about the involvement of the accused-appellants. Muhammad Aslam (PW-8) deposed during cross-examination that: -

“On the same day, i.e 11.1.2018, both the above said PWs namely Ashraf and Fiaz, met me in the home of Rehmat Ali, husband of the deceased at about 11:00AM, when I came back from Lahore. I did not state the time 12:00PM (day), in my statement to police. Volunteered, I stated the time as about 11:00AM. Till 11:00AM, on 11.1.2018, I did not tell to anyone, through mobile phone or otherwise that I have seen accused Waqas and Rimsha, while coming out from house of deceased.”

There is no eyewitness in the case, and there is no direct evidence. The case depends solely on circumstantial evidence, which the prosecution relied on in the present case: waj takkar and extrajudicial

confession. The prosecution relied on the testimony of Muhammad Anwar (PW-11), before whom the accused-appellants made the extrajudicial confession. The extrajudicial confession was made two years before making an examination-in-chief in the court (statement made in court on 20.01.2020) at about 03:00 p.m. when Muhammad Anwar (PW-11), along with Sharafat Ali, was sitting in his (PW-11) cattle shed at Hanjarwal, Lahore and appellants asked them that they were close relative of deceased Inayat Bibi and they (the appellants) murdered her and had come for getting pardoned from the legal heirs of Inayat Bibi deceased. Muhammad Anwar (PW-11) deposed during cross-examination that:-

"Mst. Enayat bibi, deceased was my Chachi. I do not know when police arrested both the accused. Our close relatives namely Malik Muhammad Afzal, Malik Shafi etc are MNAs and MPAs. It is correct that I did not contest any election even councilor under basis democracy loss."

Muhammad Aslam (PW-8), the witness of Waj takkar, deposed that at 5:00 a.m., they saw Waqas and Rimsha accused-appellants coming out of the deceased's house with a hatchet and sickle in their hands. Malik Naveed (PW-7), the complainant, deposed that his paternal cousin Ashraf (given up PW) informed him about the incident at 5:00 a.m. Similarly, Muhammad Aslam (PW-8), who lives in front of the deceased's house, deposed that he was taking milk from his house, and Shehamat (given up PW) was standing near him waiting for Mazda Van at about 5:00 a.m. when they saw Waqas and Rimsha, the accused-appellants, coming out from the deceased's house. If Muhammad Aslam (PW-8) was present outside the deceased's house and in front of his own house at about 5:00 a.m., he must have seen Muhammad Ashraf (given up PW) going into the house of the deceased, who reported the incident to Malik Naveed (PW-7), the complainant. And if Muhammad Ashraf was present at the deceased's house at 5:00 a.m., according to Malik Naveed (PW-7)-complainant, then it was not possible for Waqas and Rimsha, the accused-appellants, to come out of the house of the deceased

with a hatchet and sickle in their hands. Fiaz Ahmed (PW-10), paternal cousin of Malik Naveed (PW-7)-complainant, deposed during cross-examination that: -

"Ashraf PW is my cousin (Tayazad). We live in separate houses. Ashraf called me up for going to the house of Enayat bibi, deceased. I got recorded this fact to police u/s 161 Cr.P.C. Confronted with Ex.DA, where it is not so recorded. We took Enayat bibi, injured to hospital, putting her on cot, in a pick up (Datsun Dala) owned by Jatt. I did not get recorded the description of vehicle while recording my statement u/s 1610 Cr.P.C. I did not get recorded this fact in Ex.DA. I and Ashraf, PW alongwith many others put the injured lady on cot and proceeded towards RHC Changa Manga.----- When Ashraf told me about the hue and cry, PW Aslam alias Jajj and Shahamad Ali were present at the door of Aslam. Volunteered that while we are going into the house, Aslam alias Jajj and Shahamad Ali, PW were loading milk cans on Mazda Coaster. It is correct that Ashraf, PW did not call Aslam alias Jajj and Shahamad Ali about the fact of hue and cry listen by him. Aslam alias Jajj and Shahamad Ali were already gone to Lahore before my arrival there. It is correct that I came there at 05:00AM and Aslam alias Jajj and Shahamad Ali also went to Lahore. At that time, I did not see accused Waqas or Rimsha bibi."

Muhammad Aslam (PW-8) deposed during cross-examination that: -

"The house of Rehmat, husband of deceased is in front of my house. It took about two hours in milking and loading the milk in van. My brother and sister also helped me in my above said job of milking and loading. We all got up at 04:00AM, early in the morning. On the day of occurrence, at the time of my work, in between 04:00AM to 05:00AM, I did not hear any voice of weeping, crying from the house of my Taya Rehmat Ali."

Muhammad Ashraf (given up PW) has not been produced as a witness, which makes the story even more improbable. The last-seen evidence also requires corroboration in material particulars by unimpeachable evidence pointing to the accused's guilt, which is also a weak type of evidence. The proof of waj-takkar of Muhammad Aslam (PW-8) also does not inspire much confidence. It is a highly improbable story to believe that the accused-appellants Waqas and Rimsha would come out of the deceased's house with hatchet and sickle in their hands and he would remain silent. The prosecution has cooked up the story made up by Muhammad Aslam (PW-8).

10. The prosecution procured the witness anyway to solve the crime. In any case, an extrajudicial confession is weak evidence requiring corroboration in material particulars by other linked evidence to complete the chain leading to guilt. On confession of the appellants-accused, about the murder committed by them the immediate reaction would have been to inform at least or caught hold of accused and produced them before police or at least they have to inform to the complainant soon after the alleged confession and catch hold of accused persons, which creates doubts on the alleged confession about the guilt of the accused-appellants. Muhammad Anwar (PW-11) deposed during cross-examination that:

"At the time of so called confession, I did not overcome the accused and produced them before the police."

The inaction and the absence of immediate reaction on the part of Muhammad Anwar (PW-11) led to the opinion that the accused persons had not confessed before them about the murder, and that is why they had not reported the matter to the complainant. Muhammad Amin, S.I. (PW-12), deposed during examination-in-chief that:

"On 17.01.2018, complainant alongwith witnesses, namely Muhammad Anwar and Sharafat joined investigation and their statements regarding extra judicial confession

by accused Waqas and Rimsha bibi were recorded by me u/s 161 Cr.P.C.”

The initial story in the FIR was that of a blind murder, as the appellants were not named. Rimshah, the accused-appellant of being the deceased's daughter-in-law and Malik Naveed's sister-in-law (PW-7), the complainant. Muhammad Waqas, the accused-appellant, defended that due to the decade-long animosity between the parties, he was implicated in a false case, and Rimshah took a similar defence. The defence version recorded under section 342 Cr.P.C. is reproduced above. The reason for false implication has been explained in the statement, which, though it may not be substantive evidence, has some value in defence. There was no reason for the accused-appellants to confess their guilt before the said witness. It is now a well-settled law that evidence of extrajudicial confession has no value in the eyes of the law. The way the accused allegedly made an extrajudicial confession is not believable. The overall impact of events raises serious doubt about the statement of PW, and the version of this PW regarding extrajudicial confession is neither probable nor confidence-inspiring. After carefully reading the evidence of Muhammad Aslam (PW-8), Fiaz Ahmed (PW-10), and Muhammad Anwar (PW-11), an impression has been created in the mind of the court that these witnesses are not the witnesses of truth. The evidence appears to have been made by the prosecution. From the perusal of the record, this court finds that the prosecution has not been able to establish this circumstance against the accused-appellants. In the case of **Ibrahim and others v. The State** (2009 S C M R 407), it is observed by the Hon'ble Supreme Court of Pakistan which reads as under: -

“-----Undeniably, it was an unwitnessed occurrence, and the prosecution case rested on circumstantial evidence. It is well settled that circumstantial evidence should be like a well knit chain whose one end should point to the accused and the other to the deceased....”

It has been further noticed that Doctor Sadia Ashraf (PW-9), who conducted the postmortem examination on the dead body of Inayat Bibi

on 11.01.2018 at 03:00 p.m., has mentioned that the probable time elapsed between death and postmortem was 8 to 10 hours. Doctor Akhtar Abbas (PW-8) deposed during examination-in-chief that: -

"Eyes closed, mouth opened."

As per the contents of the post-mortem examination report (Exh.PG), the dead body was received in the dead house at 12:00 p.m., and complete police documents were received at 02:30 p.m. on 11.01.2018. The medical evidence does not connect the accused with the crime by itself, as there is no evidence on the record to suggest that FIR is anti-timed since I have already disbelieved the evidence relating to waj takkar and extrajudicial confession. Considering all these facts, this court has no hesitation in concluding that the prosecution has not been able to prove on record that the incident was reported when it was claimed to have been recorded.

11. The prosecution put much emphasis on the DNA report (Ex. PS/1 and PS/2) to the effect that Deoxyribonucleic acid (DNA) matched the profile obtained from item No. 2.1 "blade of the dranti", item No. "stain sections of Qameez of Rimsha Bibi", and item No. 6.1 "stain section taken from the dupatta" matched the profile with item No.1 "cotton" secured from place of occurrence is concerned Muhammad Aslam (PW-8), witness of waj takkar, had not deposed a single word that the sickle and clothes of was Rimsha Bibi accused-appellant were blood stained. There is no mention in the supplementary statement (Ex. PF) that the sickle and hatchet in their (Rimsha Bibi and Waqas) possession that morning were blood-stained or that their clothes were blood-stained and that they were seen coming out of the house. This is what the investigator admitted in his cross-examination. The supplementary statement (Ex. PF) does not state that the clothes were blood-stained. Muhammad Aslam (PW-8) deposed during examination-in-chief that: -

"Accused Waqas armed with hatchet present in court, and Mst. Rimsha bibi armed with sickle present in court came out from the house of Rehmat Ali, husband of deceased."

Muhammad Amin, S.I. (PW-12), deposed during cross-examination that:

"Both the witnesses have also not mentioned whether the blood was present on the clothes of accused persons, especially clothes of Rimsha bibi.----- After recording statements of Muhammad Aslam alias Jaji and Shahamat Ali, no body even complainant, disclosed that Rimsha bibi, present in the very house, wherefrom dead body was recovered, is real culprit. -----It is correct that in supplementary statement Ex.PF, nothing is mentioned about presence of blood on the clothes of accused Rimsha bibi or its colour, by the PWs."

Muhammad Amin, S.I. (PW-12), had not deposed during cross-examination that recovered articles, i.e. hatchet, sickle and clothes were blood stained, the relevant portion of the examination-in-chief is as under:

"On 17.01.2018, complainant alongwith witnesses namely Muhammad Anwar and Sharafat joined investigation and their statements regarding extra judicial confession by accused Waqas and Rimsha bibi were recorded by me u/s 161 Cr.P.C."

Similarly, Fiaz Ahmed (PW-10) deposed. Therefore, the item No. 2.1 "blade of the dranti", item No. "stain sections of Qameez of Rimsha Bibi", and item No. 6.1 "stain section taken from the dupatta" process for DNA analysis are also suspicious. Therefore, the DNA report (Ex. PS/1 and PS/2) cannot be made the sole basis for the conviction of the appellant, Ramsha. Although the evidence relating to the recoveries of the hatchet (P-5), sickle (P-6), and clothes (P-7, P-8 & P-9) on 02.02.2018 are in line, this court noted that the recovered hatchet (P- 5), sickle (P-6), and clothes (P-7, P-8 & P-9) were analyzed on 26.07.2019, one (1) year five (5) months and twenty-two (22) days after the occurrence. Human blood could not be compared. It was not possible to determine the origin of the blood on hatchet

(P- 5), sickle (P-6), and clothes (P-7, P-8 & P-9), as blood disintegrated after one month of the occurrence and in this regard, case of “**FAISAL MEHMOOD. Vs. THE STATE**” (2017 Cr.L.J 1) can be referred and relevant portion from the same is reproduced hereunder:-

“It was scientifically impossible to detect the origin of the blood after about two years of the occurrence because human blood disintegrates in a period of about three weeks.”

Admittedly, the recoveries were affected by the place and bushes from bridge “Hodan.” In the above-said circumstances, the recoveries and positive report are of no consequence.

12. This court has considered all the pros and cons of this case and has come to the conclusion that the prosecution could not prove its case against the appellants beyond any shadow of a doubt. It is well-settled law that if a single circumstance creates doubt regarding the prosecution's case, the same is sufficient to give the benefit of the doubt to the accused. It is held in the case of **“Muhammad Akram vs. The State”** (2009 SCMR 230) that:-

“It is an axiomatic principle of law that in case of doubt, the benefit thereof must accrue in favour of the accused as matter of right and not of grace. It was observed by this Court in the case of “Tariq Pervez v. The State” (1995 SCMR 1345) that for giving the benefit of doubt, it was not necessary that there should be many circumstances creating doubts. If there is circumstance which created reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of doubt not as a matter of grace and concession but as a matter of right.”

13. In the light of the above discussion, this Court is of the firm view that the prosecution has failed to prove its case against the appellants beyond any shadow of a doubt. Therefore, both appeals i.e. Criminal Appeal No.17977 of 2020 and Crl. Appeal No.18416-J of 2020 filed by Muhammad

Waqas and Mst. Rimsha Bibi, **appellants are accepted in toto.** The conviction and sentence awarded by the learned Additional Sessions Judge, Chunian, District Kasur vide judgment dated 03.03.2020 is **set aside** and the appellants, Muhammad Waqas son of Muhammad Irshad, and Mst. Rimsha Bibi wife of Muhammad Tanveer are **acquitted** of the charge in a case F.I.R. No.19/2018, dated 11.01.2018, registered under Sections 302, 34 PPC, at the Police Station, Changa Manga, District Kasur. They (the appellants) are directed to be released forthwith if not required in any other criminal case.

(AALIA NEELUM)
CHIEF JUSTICE

Approved for reporting

Chief Justice

*This judgment was dictated,
pronounced on 13.03.2025,
and signed after completion
on 18.03.2025.*

Ikram*